

parties and all causes of action without prejudice. Defendants have not yet appeared in the action. The Order to Show Cause is **DISCHARGED. No appearance is necessary on today's calendar.**

MOOK, ET AL. VS. JEANTETTE

Case Number: 22CV-0200414

Tentative Ruling on Motion for Summary Judgment: Plaintiffs Tina Mook and Steven Mook move for summary judgment on the Complaint filed against Defendant Jacqueline Jeantette on August 9, 2022. Despite being timely noticed, Defendant did not file an Opposition.

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c). A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1).

Plaintiffs' Complaint contains a single cause of action for conversion.

“Conversion is generally described as the wrongful exercise of dominion over the personal property of another.[Citation.] The basic elements of the tort are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a manner that is inconsistent with the plaintiff's property rights; and (3) resulting damages. [Citation.]” (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119, 55 Cal.Rptr.3d 621.) “Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant's good faith, lack of knowledge, and motive are ordinarily immaterial.” (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, 80 Cal.Rptr.2d 704.)

Regent Alliance Ltd. vs Rabizadeh (2014) 231 Cal. App. 4th 1177, 1181.

In this matter, Plaintiffs' Requests for Admission, Set One were ordered deemed admitted against Defendant on October 21, 2024. Defendant admitted that Plaintiff were guests at her property at the time of the fire that damaged Plaintiffs' property, that Defendant made an insurance claim for the replacement value of Plaintiffs' property, and Defendant kept the insurance proceeds for Plaintiffs' property. Defendant also admitted that Plaintiffs asked her to deliver the \$44,796.86 that was meant to replace their property, but Defendant refused and converted the insurance proceeds for Defendant's own benefit. Finally, Defendant admitted that she has no defense to the claim of Plaintiffs that Defendant converted for her personal benefit \$44,796.86 that was meant to replace Plaintiffs' property.

Plaintiffs have established each element of conversion. The burden shifts to Defendant to show that a triable issue of material fact exists. Defendant did not file an Opposition and has not raised a triable issue of material fact.

The Motion for Summary Judgment is **GRANTED**. Plaintiffs provided a proposed Order that will be modified to reflect the Court's ruling. The trial date of April 15, 2025 is vacated. The matter will be on calendar for review regarding status of judgment on **Monday, April 28, 2025 at 9:00 a.m. in Department 63**. If a judgment is on file prior to the continued hearing date, the continued hearing date will be vacated.